Intellectual Property

Intellectual Property

- It refers to creations of the mind, such as inventions, literary and artistic works, designs, symbols, names, and images used in commerce.

- It's protected by laws, granting the creator or owner exclusive rights over the use of their creation for a certain period.

There are various types of intellectual property:

- Patents
- Copyright
- Trademarks
- Trade Secrets
- Industrial Design Rights

Copyright

- It is a form of intellectual property protection granted to the creators of "original works of authorship," including literary, dramatic, musical, and artistic works, as well as certain other intellectual works, such as software and architectural designs

- The rights granted by copyright law allow the creator or owner to control and benefit from the use of their work.

- These rights typically include the exclusive rights to reproduce the work, create derivative works, distribute copies, perform, and display the work publicly

Some key points about copyright:

- Originality: To be eligible for copyright protection, a work must be original and fixed in a tangible form.
- Rights of the Copyright Holder: The copyright holder has the exclusive rights to reproduce the work, prepare derivative works, distribute copies, perform, and display the work publicly
- Fair Use: There are limitations to copyright. Fair use allows for the use of copyrighted material for purposes such as criticism, comment, news reporting, teaching, scholarship, or research without the need for permission from or payment to the copyright holder.

- Digital Age Challenges: With the advent of the internet and digital technologies, copyright enforcement faces challenges related to online piracy, file sharing, and the unauthorized use of digital content.

- Time frame for filling copyright registration

  Normally 5 to 35 days but time frame for filing a copyright varies depending on the country's copyright laws.

- Registration duration

  In Nepal, the general duration of copyright protection for most works is the lifetime of the author plus 50 years after their death.

Patent

- It is a form of intellectual property protection granted to inventors or creators of new and innovative inventions or discoveries.

- It provides the patent holder exclusive rights to their invention for a limited period, allowing them to prevent others from making, using, selling, or importing the patented invention without their permission.

Patent filing in Nepal

- The law governing patent filing in Nepal is the Nepal patents act 1965
- As per that a patent means any useful invention invented through a new method or process of the construction operation or publicity of any material or collection of materials through any principle
- Only ordinary and convention patent applications can be filed in Nepal
- As Nepal is not a member of patent cooperation treaty(PCT) so PCT national phase patent applications cannot be filed in Nepal

Inventions not patentable in Nepal

- A patent is not registered in following circumstances

1. If it has already been registered in the name of any other person

2. In case the applicant him/her is not not able to invent nor has acquired rights over it from the original inventor

3. If the patent registered is found to cause adverse effect in health, conduct or violate moral or ethics in nation

In Nepal, patents are protected through the Department of Industry under the Patent, Design, and Trademark Act. There are primarily two types of patent applications:

- Ordinary Patent Application: This application is filed for inventions that have not been disclosed or published anywhere in the world. It provides protection for 20 years from the date of filing the application.

- Convention Patent Application: This application is filed based on a priority claim from a country that is a signatory to the Paris Convention for the Protection of Industrial Property. The priority claim allows an applicant to file for the same invention in Nepal within 12 months from the date of the first filing in the convention country.

Trade secrets

- Trade secrets refer to valuable and confidential information that provides a competitive advantage to a business or an individual.
- Unlike patents, trademarks, or copyrights, trade secrets rely on maintaining secrecy rather than seeking legal protection through registration.

Here are some key aspects of trade secrets:

- Nature of Information: Trade secrets can encompass a wide range of information, such as formulas, techniques, processes, methods, customer lists, business strategies, pricing information, and more. The crucial aspect is that this information holds value due to its secrecy and its contribution to a business's competitive edge.
- Protection through Secrecy: Trade secrets are protected through secrecy measures. Companies must take reasonable steps to keep the information confidential. This might involve restricting access, using non-disclosure agreements (NDAs), implementing security protocols, and other measures to prevent unauthorized access or disclosure.
- Duration of Protection: Unlike patents, which have a limited duration (usually 20 years), trade secrets can theoretically be protected indefinitely as long as the information remains secret and continues to provide a competitive advantage.

- No Registration Requirement: There's no formal registration process for trade secrets. The onus is on the business or individual to maintain the secrecy of the information. However, some legal systems may offer remedies or legal recourse in case of misappropriation or unauthorized disclosure of trade secrets.
- Legal Protection: Many countries, including Nepal, have laws or regulations that protect trade secrets. In Nepal, trade secrets might be protected through contractual agreements, civil laws related to unfair competition, breach of confidence, or other legal provisions that prevent the unauthorized acquisition, use, or disclosure of confidential information.

Intellectual property issues

- Plagiarism
- Reverse Engineering
- Cybersquatting
- Open source code
- Competitive intelligence
- Trademark infringement

Plagiarism

- It is when someone uses someone else words, ideas, or work without proper acknowledgment or permission and presents it as their own.
- It's like taking credit for something you didn't create.
- It's considered unethical and is often prohibited in academic, professional, and creative settings.
- It has become an issue from elementary schools to the highest levels of academia

- It also occurs outside academia
- Popular literary authors, playwrights, musicians, journalists and even software developers have been accused of it
- A recent survey reported that 55 % of university presidents felt that plagiarism has increased over the past decade in spite of increased efforts to combat the practice

Dealing with plagiarism can be quite challenging and sensitive. If you're facing a plagiarism issue, here are some steps you might consider:

- Communicate: If you're dealing with a student, colleague, or someone else who has plagiarized, communicate with them. Discuss why proper attribution is crucial and explain the consequences of plagiarism.

- Provide Guidance: Offer guidance on how to properly cite sources and use referencing styles. Some individuals might not be aware of the correct methods.

- Document Everything: Keep records of the plagiarized content, communications, and any steps you take to address the issue. Documentation can be important if the situation escalates.

- Follow Organizational Policies: Many institutions and organizations have specific protocols for handling plagiarism. Follow these procedures to ensure fairness and compliance.

- Educate and Raise Awareness: Sometimes, people plagiarize due to ignorance rather than malice. Organize workshops or seminars to educate others about plagiarism and its consequences.

- Apply Consequences if Necessary: Depending on the severity and intent behind the plagiarism, there might be consequences outlined by your institution or workplace.

- Use Plagiarism Detection Tools: There are various online tools available to check for plagiarism. They can help identify copied content and provide evidence if needed.

Reverse Engineering

- It refers to the process of analyzing a product, system, or technology to understand its components, structure, and functionality
- It was originally applied to computer hardware but is now commonly applied to software as well
- It involves analyzing it to create a new representation of the system in a different form or at a higher level of abstraction

It can be a complex and challenging process due to several factors:

- Legal and Ethical Issues: One of the primary challenges is navigating the legal landscape. Reverse engineering can infringe on patents, copyrights, or trade secrets. Determining what can be legally reverse engineered without violating intellectual property laws requires careful consideration.

- Complexity of Systems: Systems, whether software or hardware, can be incredibly intricate. Reverse engineering a complex system requires significant expertise and resources. Understanding all the components and their interactions can be daunting.

- Lack of Documentation: Often, the original creators might not provide documentation or specifications for their products or systems. Reverse engineers must rely on observation, analysis, and experimentation, which can be time-consuming and less accurate.

- Time and Resources: Reverse engineering can be time-intensive and resource-demanding. It requires skilled personnel, specialized tools, and a substantial investment in time to dissect, understand, and reconstruct the original system.
- Dynamic Nature of Technology: Technology is continually evolving. Reverse engineering a product might provide insights, but by the time the process is completed, the original technology could have advanced or become obsolete.
- Incomplete Understanding: Even after significant effort, reverse engineers might not fully comprehend all aspects of a system. Certain parts or functionalities may remain elusive or not fully understood.
- Risk of Error: Mistakes during the reverse engineering process can lead to inaccurate conclusions or incomplete reconstructions, potentially resulting in subpar replicas or products.

Cybersquatting

- It refers to the practice of registering, trafficking in, or using a domain name with the intent to profit from the goodwill of someone else trademark.

- In the mid-1990s, a man named Josh Quittner, who was working as a reporter for Wired magazine, registered the domain name "mcdonalds.com." During that time, the internet was relatively new, and companies were just beginning to recognize the importance of securing their brand names as domain names.

- Quittner's registration of "mcdonalds.com" was a demonstration of how easily a domain associated with a well-known brand could be acquired by someone unrelated to the company. This highlighted the vulnerability of companies to potential cybersquatting.
- As expected, McDonald's, realizing the potential implications of not owning their own domain name, sought to regain control of "mcdonalds.com." They eventually negotiated with Quittner to acquire the domain name

Open Source Code

- It is software code that is made freely available for anyone to view, modify, and distribute.
- This code is often created collaboratively, allowing developers worldwide to contribute improvements, fix issues, and build upon the existing codebase.
- Platforms like GitHub, GitLab, and Bitbucket host countless open-source projects, spanning various domains such as operating systems (Linux), web development frameworks (React, Vue.js), and programming languages (Python, JavaScript).

Organizations choose to create open-source code for several reasons:

- Community Collaboration: Open-source projects benefit from contributions from a diverse pool of developers. By making code open, organizations can tap into a global talent pool to improve, enhance, and innovate their projects.

- Transparency and Trust: Open-source code fosters transparency. Users can inspect the code, ensuring it’s secure, reliable, and free from malicious intent. This transparency often builds trust among users and potential contributors.

- Faster Innovation: Opening up code allows for rapid innovation. Contributors can suggest improvements, add features, or fix bugs, accelerating the development process.

- Wider Adoption: Open-source projects often gain wider adoption due to their accessibility and collaborative nature. This can lead to a larger user base and potentially more widespread usage of associated products or services.
- Cost Reduction: Organizations can save on development costs by leveraging the expertise and contributions of the open-source community. Instead of relying solely on in-house development, they benefit from the collective efforts of developers worldwide.
- Attracting Talent: Developers often gravitate towards open-source projects due to the opportunities they offer for learning, skill development, and networking. This can help organizations attract top talent in the field.

Competitive Intelligence

- It involves gathering and analyzing information about competitors in a particular market to gain insights and make informed strategic decisions.
- For example some companies have employees who monitor the public announcements of property transfers to detect any plant or store expansions of competitors
- It helps in developing strategies to differentiate your offerings, identify opportunities for innovation, address weaknesses, and capitalize on competitors' shortcomings.

Different methods involved are:

- Market Analysis: Understanding the market landscape, including competitors' products, pricing strategies, market share, strengths, weaknesses, and target audiences. This analysis helps in positioning your own product or service effectively.

- SWOT Analysis: Evaluating competitors' strengths, weaknesses, opportunities, and threats (SWOT) allows you to identify areas where you can outperform them or uncover potential vulnerabilities.

- Product and Service Comparison: Studying competitors' offerings, features, quality, and customer feedback helps in benchmarking your own products or services and finding areas for improvement.

- Monitoring Online Presence: Tracking competitors' online activities, such as their social media engagement, content marketing strategies, website traffic, and customer interactions, provides insights into their marketing approach.

- Industry Trends and Innovation: Keeping abreast of emerging technologies, industry trends, and innovations adopted by competitors helps in anticipating market shifts and staying ahead.

- Customer Feedback and Reviews: Analyzing customer reviews, feedback, and complaints about competitors' products or services provides insights into customer satisfaction levels and areas needing improvement.

- Partnerships and Collaborations: Monitoring whom your competitors are partnering with or the collaborations they are entering into can offer clues about their future strategies or market expansion plans.

Trademark infringement

- It is a logo, package design, phrase, sound or word that enables a consumer to differentiate one company products from another
- Consumer cannot often examine goods or services to determine their quality or source so instead they rely on the labels attached to the products
- It is not uncommon for an organization that owns a trademark to sue another organization over the use of that trademark in a website or a domain name

- The court rulings in such cases are not always consistent and are quite difficult to judge in advance
- Nominative fair use is a defense often employed by the defendant in trademark infringement cases in which a defendant has used a plaintiffs mark to identify the plaintiffs products or services in conjunction with its own product or services

some common strategies that defendants may employ when facing a trademark infringement lawsuit:

- Lack of Likelihood of Confusion:One of the key elements in a trademark infringement case is the likelihood of confusion. If you can show that there is no likelihood of confusion between your mark and the plaintiff's mark, it can be a strong defense.
- First Use and Prior Rights:If you can establish that you were the first to use the mark in commerce, you may have prior rights that could serve as a defense. Trademark law often prioritizes the party that can demonstrate the earliest use.
- Abandonment or Non-Use by the Plaintiff: If the plaintiff has not actively and consistently used their trademark or has abandoned it, you may argue that the mark has lost its protection due to non-use.

- Consent or Agreement: If you can show that the plaintiff has consented to your use of the mark or that there is a prior agreement allowing such use, it can be a strong defense
- Geographic Limitations: If the plaintiff's trademark rights are geographically limited, you might argue that your use is in a different geographic location and does not infringe on their rights.